IN THE CIRCUIT COURT OF THE FIFTH JUDICIAL CIRCUIT
IN AND FOR MARION COUNTY, FLORIDA

PATRICIA STROBO and
JOE STROBO,

Plaintiffs, **CASE NO.: 42-2021-CA-002211**

vs.

WILLIAM RICHESON and
BLAC INVESTEMEN. INC.,

Defendants.
_____/

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ORDER SCHEDULING PRETRIAL CONFERENCE AND JURY TRIAL

Pursuant to the Joint Stipulation as to Trial Term filed June 2, 2022, it is

ORDERED AND ADJUDGED as follows:

1. A pretrial conference in this cause will be held before Judge Gary L. Sanders, in **Courtroom 2B** of the Marion County Judicial Center, 110 NW 1st Avenue, Ocala, FL, 34475, on **Thursday, April 27, 2023 at 2:00 p.m.**, pursuant to Florida Rule of Civil Procedure 1.200 (2012), to consider all matters suggested by the rule. (15 minutes have been reserved.) The Court reserves the right, at the pretrial conference, to dispose of any pending motions but may defer ruling on the same and/or any requests for preliminary rulings if the Court, in its discretion, believes that additional briefing under the motion practice procedure is necessary.

2. Each party shall be represented at the pretrial conference by the attorney who expects to conduct the actual trial of the case. Telephonic appearance is not permitted for the pretrial conference. If the party is *pro se* (does not have an attorney), the party must attend the pretrial conference. A party appearing *pro se* is held to the same standards as required by any attorney including, but not limited to, complying with the applicable Florida Rules of Civil Procedure pleading requirements and Florida Statute §90 *et seq*. See, *Kohn v. City of Miami Beach*, 611 So.2d 538 (Fla. 3rd DCA 1992). Such attorney or *pro se* party shall be familiar with the provisions of Florida Rule of Civil Procedure 1.200 (2012), with his/her own evidence, and shall have full authority to disclose facts, stipulate to undisputed facts and waive technical requirements for admission of evidence. Failure of a represented party to appear by trial counsel, or, if unrepresented, in person, may be grounds for the Court to dismiss the case, strike the answer or other pleadings, hold the attorney or pro se party in contempt and/or take such other action(s) as the Court deems appropriate.

3. Discovery Deadlines:

a) All discovery – including that of medical experts – shall be conducted and concluded at least **ten (10) days prior to the date of pretrial conference.**

b) A witness list with the names and addresses of all individuals who may be called by the party to testify at the trial– shall be filed at least **sixty (60) days prior to the pretrial conference.**

c) As to any expert witnesses:

1. the Plaintiff's expert witness list must be filed **seventy-five (75) days prior to the pretrial conference.**
2. the Defendant's expert witness list must be filed **sixty (60) days prior to the pretrial conference.**
3. The parties must also produce all information as set forth in Florida Rule of Civil Procedure 1.280(b) (2012). The failure to include a proper address for any witness may cause the Court to exclude this witness from testifying at trial.

d) Any and all examinations under Florida Rule of Civil Procedure 1.360 (2012), must be completed no later than **seventy-five (75) days prior to the date of pretrial** and the IME report generated must be tendered to the opposing counsel no later than **sixty (60) days** prior to the date of pretrial so that counsel has sufficient time to depose the Rule 1.360 expert witness. The failure to otherwise comply with the time frame requirements set forth in this order may result in the Rule 1.360 expert witness and his/her report being excluded from trial.

4. Any party that requests a "*Fabre*"[1] defendant/non-party be included on the verdict form, must identify, in writing, the specific name of the *Fabre* Defendant/non-party and file this disclosure with the Clerk of Court no later than thirty (30) days before the pretrial conference[2], unless this date is extended by written stipulation of the parties and timely filed in the court file, or by further order of this Court, upon good cause being shown. Any failure to comply with these provisions of this order may constitute a waiver.

5. Prior to the pretrial conference, counsel shall present all documentary evidence and exhibits to be used at trial to opposing counsel for inspection. Additionally, Counsel shall confer on any matters of law or fact about which there is no issue, and any matters that would simplify the issues or aid in the speedy disposition of the action.

6. If the parties have not voluntarily mediated this cause, the parties shall confer and select a certified mediator and shall agree on a date, time, and location for the mediation prior to the pretrial conference. **Mediation must be completed prior to the pretrial conference and the**

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[1] Pursuant to ***Fabre v. Marin***, 623 So2d 1182 (Fla. 1993).
[2] See, ***Nash v. Wells Fargo Guard Services, Inc.***, 678 So2d 1262 (Fla. 1996)

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court will only accept a mediation disposition report which is dated no more than one (1) year from the date of the pretrial conference. Any mediation(s) conducted in excess of one (1) year from the date of the pretrial conference will not be accepted and a new/updated mediation must be conducted. Failure to comply with this mediation order may result in the rescheduling of the pretrial conference.

7. **Oral argument for dispositive motions (including but not limited to motions for summary judgment and 90.702 Daubert challenges) must be held no less than thirty (30) days prior to the pretrial conference.** Failure to timely comply with this requirement may result in waiver of consideration of the dispositive motion(s) or imposition of other sanctions. The Court may consider waiving this requirement on a case-by-case basis upon request by a party if good cause is demonstrated.

8. AT LEAST SEVEN (7) DAYS PRIOR TO THE PRETRIAL CONFERENCE, COUNSEL AND ANY PRO SE PARTY SHALL FILE, with a copy to opposing counsel, the following:

a) A brief memorandum setting forth the general nature of the proceedings, including:

(1) The names of all parties;

(2) Factual contentions of each party;

(3) The type of action and relief sought;

(4) The type of counterclaim, if any, and the relief sought thereby;

(5) Third party actions, if any, and the relief sought thereby;

(6) The defense(s) interposed to the Complaint, Counterclaim and/or third-party complaint;

(7) All facts either party will admit.

b) A schedule of all exhibits and documentary evidence which may be used by the party at the trial;

c) A witness list of the names and addresses of all individuals who may be called by the party to testify at the trial, including rebuttal witnesses.

d) Any request for preliminary rulings on questions of law and supporting citations.

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9. Counsel shall be prepared to present at the pretrial conference a statement of facts pertaining to the case, a statement of facts which are to be admitted by each of the parties, the issues of fact the parties intend to litigate, any agreement or objections to exhibits and documentary evidence, and the citations of the authorities in support of each point upon which the party intends to rely.

10. Any record made in the course of the conference proceedings shall be deemed part of the record made upon the trial of this cause, except statements relative to settlement. Counsel should come prepared to state a computed settlement figure acceptable to your party based upon damages and liability that can be proven. If counsel desires a transcript of the conference, arrangements should be made for it to be taken at the parties' own expense.

11. Motions in Limine must be filed no less than **fifteen (15) days prior to the trial term** and must be scheduled for hearing before the beginning of the trial term.

12. Proposed jury instructions, verdict form and statement of the case to be read to the jury shall be submitted to the Court in Word format (to rgrubb@circuit5.org) five (5) days prior to the beginning of the trial or at the date ordered at the pretrial conference. *Florida Standard Jury Instructions* shall be typed and submitted in a form suitable for presentation to the jury. If any change of the standard instructions is requested, the instruction should be submitted in the form sought. Other special jury instructions proposed to be used at the trial shall be filed and delivered to opposing counsel in writing **no less than five (5) days before trial.**

13. All exhibits shall be pre-marked prior to the start of trial. Counsel shall contact the Clerk of the Court's office at 352-671-5640 to make arrangements for a court clerk to mark exhibits.

14. Email helpdesk@circuit5.org for inquiries, reservations, and scheduling of electronic equipment for use at the trial. Scheduling should be done as soon as possible, to ensure availability. In addition, cancellation of equipment reservations should be made in the same manner, in the event of a trial cancellation.

15. Arrangements for the attendance of the court reporter at trial shall be the obligation of the parties and/or their counsel.

16. A Memorandum setting priority of trials will be furnished to all attorneys approximately two weeks prior to trial term. It shall be the responsibility of the attorneys to determine the disposition of the cases as scheduled on the Memorandum and to be present for trial at any time during the scheduled trial term of the Court.

17. Attorneys are encouraged to follow the Florida Bar Trial Lawyers Section, Guidelines for Professional Conduct.

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18. **The trial term is June 5, 2023 through June 16, 2023. Juror selection will commence at 9:00 a.m. or as soon as jurors are qualified on Monday, June 5, 2023, unless the case is specifically set for trial the second week. All juries for the second week will be selected on June 12, 2023 at 9:00 a.m. or as soon as jurors are qualified.**

DONE AND ORDERED on this 3rd day of June 2022 at Ocala, Marion County, Florida.

Gary L. Sanders
Circuit Court Judge

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy hereof has been furnished by electronic mail on this 3rd day of June 2022, to all counsel of record.

R. Grubb, Judicial Assistant

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If you are a person with a disability who needs any accommodation in order to participate in this proceeding, you are entitled, at no cost to you, to the provision of certain assistance. Please contact ADA Coordinator, Marion County Judicial Center, 110 N.W. 1st Avenue, Ocala, Florida 34475 or (352) 401-6710 at least at least 7 days before your scheduled court appearance, or immediately upon receiving this notification if the time before the scheduled appearance is less than 7 days; if you are hearing or voice impaired, call 711.